

MAY 30 1997



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11627

EXPIRATION DATE: March 31, 1999

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Cabot Corporation
Revere, PA 19029
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of a Division 6.1, Hazard Zone B material (poisonous by inhalation) in a combination package with an inner container of capacity 3.5 gallons. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.227(a)(1) in that the capacity of the inner receptacle exceeds 1.0 gallon.
5. BASIS: This exemption is based on the application filed on behalf of Cabot Corporation dated December 27, 1995, and additional information dated September 24, 1996, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Germanium Tetrachloride/Toxic liquid, corrosive, inorganic n.o.s.	6.1	UN3289	I, Hazard Zone B

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a combination packaging system as specified in § 173.226(c), except that the capacity of the inner receptacle is 3.5 gallons. Only one inner receptacle is authorized in the outer packaging. The inner receptacle is a Pyrex glass bottle with a Teflon screw on valve. The inner receptacle must be wrapped in a polyester sack and further sealed in an airtight plastic bag before being placed in the intermediate packaging. The intermediate packaging is a UN1A2 steel drum having a capacity of 20 gallons. The UN1A2 steel drum is fitted with styrofoam bottom pad, side lining and top pads. The outer packaging is a UN4D plywood box.

b. TESTING - Both the inner packaging system and the outer packaging must conform to the performance test requirements of subpart M of part 178 at the Packing Group I performance level. The inner packaging system must meet the test requirements without the benefit of the outer packaging.

8. SPECIAL PROVISIONS:

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

c. MARKING - Each package must be plainly and durably marked "DOT-E 11627" as specified in § 172.301(c).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAY 30 1997

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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